

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

CIV245875: WORLDWIDE ASSET VS CARMEN MEZA

08/24/2026 in Department 21

Claim of Exemption - Levy as to Carmen Meza

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Creditor River Heights Capital LLC’s (“Creditor”) opposition to claim of exemption.

Tentative Ruling: The hearing on this motion is continued to 10/14/26 at 8:30 am.

Discussion:

Upon issuance of a writ, collection is self-executing. However, certain assets are subject to exemption. A certain portion of a judgment debtor’s wages are automatically exempt. The lesser of the following two are available for withholding for a creditor: 20% of the employee’s disposable earnings for that week, or 40% of the amount by which the individual’s disposable earnings for that week exceed 48 times the local minimum hourly wage in effect at the time the earnings are payable. (CCP §706.050.) “Disposable earnings” are those earnings remaining after deduction of any amounts required by law to be withheld including social security, federal and state income taxes, and state disability insurance. (*Ahart*, Cal. Prac. Guide, *Enforcing Judgments and Debts*, § 6:1171.) This is an “automatic” exception which need not be affirmatively asserted. (*Sourcecorp, Inc. v. Shill* (2012) 206 Cal.App.4th 1054, 1058.) Additional amounts may be exempt to the extent they are “necessary for the support of the judgment debtor or his family.” (CCP §706.051(a)(b).) There is no precise definition of what is “necessary” for the support of a judgment debtor or his family. (*Ahart*, Cal. Prac. Guide, *Enforcing Judgments and Debts*, § 6:1179.) “Necessary” expenses normally include housing costs, food, insurance, automobile costs, and the like, but the court must consider the circumstances surrounding each individual case. (*Id.*) Although the burden of proof lies with the party claiming the exemption to establish what is and is not a necessity of life in that particular household, exemption statutes are generally construed in favor of the debtor. (*Kono v. Meeker* (2011) 196 Cal.App.4th 81, 86.)

The process of determining an exemption, or whether a levy may be made on certain property of the judgment debtor, is ordinarily begun with a claim of exemption filed by the judgment debtor ***with the levying officer***. (CCP §706.105(b).) The debtor must include therewith a detailed financial statement. (CCP §706.123.) The levying officer then gives notice to the judgment creditor.

To oppose a claim of exemption, the creditor must file with the levying officer AND the court, within 10 days after the date of the notice of claim of exemption was mailed, notice of opposition. (CCP §706.105(d).) It must be executed under penalty of perjury, and should include an amount the creditor will accept per pay period on account of the debt. (CCP §706.128.) The creditor must also complete and file the official form notice of hearing. CCP §706.105(e).

This Court is unable to reach the merits of the claimed exemption because neither the levying officer nor the creditor provided a copy of debtor's claim packet for this Court's consideration. Although no statute compels the *creditor* to file copies with the court (only the levying officer), judgment creditors should always submit to the court copies of the claim of exemption and financial statement. If the judgment creditor does not submit them to the court, and the levying officer has failed to do so, the court will not be able to review/rule on the claim of exemption and the creditor's opposition. (See *Ahart*, Cal. Prac. Guide, *Enforcing Judgments and Debts*, § 6:1196.1 (2012 Thomson Reuters).) Since this is creditor's application for relief, the onus rests with the creditor to submit all necessary paperwork for this Court's informed consideration.

The hearing will need to be continued to 10/14/26 at 8:30 am. Creditor is ordered to give notice to the debtor of the next hearing date, and to file proof of service along with the debtor's actual exemption packet with financials.